

24PSCV04414 24PSCV04414

County: los-angeles

Division: Civil Law and Motion

Department: O

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Tentative Ruling

Plaintiff's Counsel's Motion to be Relieved as Counsel is TBD/likely granted, but effective upon proof of service of this court's order upon Plaintiff, Defendants, and other parties who have appeared; see infra.

Background

This is a lemon law case arising from a 2018 purchase of a 2018 Chevrolet Silverado 1500.

On December 23, 2024, Plaintiff Ignacio Cardenas filed suit against Defendant General Motors.

On February 28, 2025, Defendant filed a demurer and a motion to strike (MTS).

On May 27, 2025, Plaintiff filed a first amended complaint (FAC) for SBA violations and a fifth COA for fraudulent inducement, which rendered the demurrer and MTS moot.

On February 25, 2026, the court sustained the demurrer of GM without leave to amend and granted the MTS without leave to amend.

On March 2, 2026, Defendant filed its answer.

On June 2,
2026, the instant motion was filed.

On June 29,
2026, an opposition was filed.

Discussion

As set forth
in Counsel Larry Chae's declaration, Strategic Legal Practices, APC seeks to be
relieved as counsel for Plaintiff due to a complete breakdown in the
attorney-client relationship. More specifically, since 2/4/26, the firm has
made numerous attempts to communicate with Plaintiff (calls, emails),
all to no avail. On 2/25/26, Counsel sent Plaintiff a "comprehensive letter...and
demanded an immediate response," but again, no response was received.

Defendant GM

opposes largely on the grounds of purported defective service. (See e.g., Opp.
P. 6: ["Plaintiff's counsel has not established compliance with California
Rules of Court, rule 3.1362. The moving papers do not show that Plaintiff's
address was confirmed within 30 days before filing, do not identify reasonable
efforts to locate a more current address, and do not include a proof of service
showing service on Plaintiff."].) (It is accurate that the proof of service
(POS) filed only shows service of this motion upon Defendant.)

But it is unclear how much more Plaintiff's
counsel must do. It is
reasonably inferred that Plaintiff's counsel served the client at the address on
file and has been communicating via every method available (email,
phone, etc.), but the client is seemingly unresponsive/perhaps uninterested in
further prosecuting the case. While CRC Rule 3.1362 does provide that "[m]erely
demonstrating that the notice was sent to the client's last known address" is
insufficient, the rules do not specify how or what additional means
are to be taken. Plus, of note, the declaration states that the motion will
be sent via electronic service and CRC Rule 3.1362(d)(2) does permit
service of the motion and accompanying documents via electronic service.

That said,
the court does understand Defendant's focus on how ensuring Plaintiff received

notice of this motion goes to a greater concern in that “GM should not be forced to litigate against an absent or unreachable plaintiff, absorb delay caused by Plaintiff’s counsel’s withdrawal, or face later requests to continue deadlines because Plaintiff did not receive proper notice.” (Opp. 2:5-9.)

With that, the court is setting an OSC re: Who Will Represent Plaintiff at 9 AM on Thursday, August 20, 2026; the court is setting the OSC about one month from the hearing to ensure that Plaintiff has reasonable time to retain new counsel. Should Plaintiff fail to attend that hearing, the case will be dismissed.

Conclusion

Based on the foregoing, the motion is TBD/likely granted upon clarification regarding service of the motion and effective upon filing of the proof of service of this court’s order of both (i) relieving Counsel and (ii) the OSC sent to Plaintiff, Defendant, and any other parties who have appeared in this action.